Subsequent Publications (After January 31, 2024)

July 2026 Update

This Subsequent Publications listing includes documents that affect USPTO patent examining policies and procedures after January 31, 2024, and are under consideration for inclusion in a future publication of the Manual of Patent Examining Procedure (MPEP). Specifically, the most recent publication (November 2024) of the MPEP (9th Edition, Rev. 01.2024) is current as of January 31, 2024. Any changes to USPTO patent examining policies and procedures that occurred after January 31, 2024, have not been incorporated into the current MPEP. The listing below is provided to ensure better access to updated information. This listing is current as of July 20, 2026.

Patent Laws

- Good Faith Exception to the Imposition of Certain Fines, **Public Law 118-151, sec. 1**, enacted December 17, 2024.

Patent Rules

- Signature Requirements Related to Acceptance of Electronic Signatures for Patent Correspondence
  - Final rule, **89 FR 20321**, March 22, 2024, effective March 22, 2024.
  - **Memorandum to the Examining Corps**, March 22, 2024 (with **Signature Examples** attached).
- Electronic Submission of Notices of Appeal to the United States Court of Appeals for the Federal Circuit, Notices of Election, and Requests for Extension of Time for Seeking Judicial Review
  - Final rule, **89 FR 22084**, March 29, 2024, effective March 29, 2024.
- Adoption of Updated WIPO Standard ST.26; Revision to Incorporation by Reference
  - Final rule, **89 FR 36677**, May 3, 2024, effective July 1, 2024.
- Rules Governing Pre-Issuance Internal Circulation and Review of Decisions Within the Patent Trial and Appeal Board
  - Final rule, **89 FR 49808**, June 12, 2024, effective July 12, 2024.
- Rules Governing Motion To Amend Practice and Procedures in Trial Proceedings Under the America Invents Act Before the Patent Trial and Appeal Board
  - Final rule, **89 FR 76421**, September 18, 2024, effective October 18, 2024.

- Rules Governing Director Review of Patent Trial and Appeal Board Decisions
  - Final rule, **89 FR 79744**, October 1, 2024, effective October 31, 2024.
- Expanding Opportunities To Appear Before the Patent Trial and Appeal Board
  - Final rule, **89 FR 82172**, October 10, 2024, effective November 12, 2024.
- Setting and Adjusting Patent Fees During Fiscal Year 2025
  - Final rule, **89 FR 91898**, November 20, 2024, effective January 19, 2025.
  - Final rule (correction), **90 FR 3036**, January 14, 2025, effective January 19, 2025.
- Discontinuation of the Accelerated Examination Program for Utility Applications
  - Final rule, **90 FR 24324**, June 10, 2025, effective July 10, 2025.
- 2025 Increase of the Annual Limit on Accepted Requests for Prioritized Examination
  - Final rule, **90 FR 29990**, July 8, 2025, effective July 8, 2025.
- Eliminating Expedited Examination of Design Applications
  - Final rule, **90 FR 39124**, August 14, 2025, effective August 14, 2025.
- Required Use by Foreign Applicants and Patent Owners of a Patent Practitioner
  - Final rule, **91 FR 13510**, March 20, 2026, effective July 20, 2026.
- Conditions for Additional Information and Fee in Petitions Filed in Patent Applications and Patents Based on Unintentional Delay
  - Final rule, **91 FR 37826**, June 24, 2026, effective August 13, 2026.

Patent Notices and Guidance

- Updated Guidance for Making a Proper Determination of Obviousness
  - Federal Register notice, **89 FR 14449**, February 27, 2024, effective February 27, 2024.
  - **Memorandum to the Examining Corps**, February 27, 2024.
- Resources for Examining Means-Plus-Function and Step-Plus-Function Claim Limitations
  - Federal Register notice, **89 FR 19817**, March 20, 2024.
  - **Memorandum to the Examining Corps**, March 18, 2024.
- Guidance on Use of Artificial Intelligence-Based Tools in Practice Before the United States Patent and Trademark Office
  - Federal Register notice, **89 FR 25609**, April 11, 2024, applicable April 11, 2024.

- Updated Guidance and Examination Instructions for Making a Determination of Obviousness in Designs in Light of *LKQ Corp. v. GM Global Technology Operations LLC*
  - **Memorandum to the Examining Corps**, May 22, 2024, effective May 22, 2024.
- Clarification of the Requirement for the Non-DOCX Surcharge
  - Official Gazette notice, **1523 OG 293**, June 11, 2024.
- USPTO Discontinuing Use of PTO/SB/84 Form (Authorization to Act in a Representative Capacity in Patent Cases)
  - Official Gazette notice, **1524 OG 115**, July 2, 2024, effective July 2, 2024.
- 2024 Guidance Update on Patent Subject Matter Eligibility, Including on Artificial Intelligence
  - Federal Register examination guidance, **89 FR 58128**, July 17, 2024, effective July 17, 2024 (announcing **July 2024 Subject Matter Eligibility Examples**).
  - **Memorandum to the Examining Corps**, July 16, 2024.
- Revised Form Paragraphs for Design Patents and Applications
  - **Memorandum to Technology Center 2900**, January 14, 2025.
- Revised and New Form Paragraphs in View of Setting and Adjusting Patent Fees During Fiscal Year 2025 (Final Rule)
  - **Memorandum to the Examining Corps**, January 17, 2025.
- Update to the Mailing and Hand Carry Addresses Listing in the Official Gazette
  - Official Gazette notice, **Weekly**, April 8, 2025.
- Suspension of Expedited Examination of Design Patent Applications
  - Official Gazette notice, **1533 OG 212**, April 29, 2025, effective April 17, 2025.
- Statutory Penalties for False Assertions or Certifications of Small and Micro Entity Status
  - Official Gazette notice, **1536 OG 204**, July 8, 2025.
- Reminders on evaluating subject matter eligibility of claims under 35 U.S.C. 101
  - **Memorandum to the Examining Corps**, August 4, 2025.
- DesignVision: A New Artificial Intelligence-Powered Image Search Tool
  - Official Gazette notice, **1537 OG 303**, August 12, 2025.
- Updated Legal Framework for Patent Electronic System
  - Federal Register notice, **90 FR 44050**, September 11, 2025, applicable September 11, 2025.

- Modified Panel Review Conference Procedure Pilot in *Ex Parte* Reexamination Proceedings
    - Official Gazette notice, **1538 OG 358**, September 16, 2025, effective August 20, 2025.
- Advance Notice of Change to the MPEP to provide guidance on the use of PE2E Search's Similarity Search feature
    - **Memorandum to the Examining Corps**, October 24, 2025, effective October 24, 2025.
- Advance notice of change to the MPEP with respect to false assertions or certifications of entity status
    - **Memorandum to the Examining Corps**, October 24, 2025, effective October 24, 2025.
- Revised Inventorship Guidance for AI-Assisted Inventions
    - Federal Register examination guidance, **90 FR 54636**, November 28, 2025.
- Subject Matter Eligibility Declarations
    - **Memorandum to the Examining Corps**, December 4, 2025.
- Advance notice of change to the MPEP in light of *Ex Parte Desjardins*
    - **Memorandum to the Examining Corps**, December 5, 2025, effective December 5, 2025.
- Filing Anonymous Requests for *Ex Parte* Reexamination Directed to Previously-Challenged Patents
    - Official Gazette notice, **1544 OG 128**, March 3, 2026.
- Supplemental Guidance for Examination of Design Patent Applications Related to Computer-Generated Interfaces and Icons
    - Federal Register examination guidance, **91 FR 12394**, March 13, 2026, effective March 13, 2026.
- New Opt-In Process for Ceremonial Copies of Patent Grants
    - Official Gazette notice, **1544 OG 412**, March 17, 2026, effective March 9, 2026.
- Pre-order Procedure regarding Substantial New Question determination in *ex parte* Reexamination Proceedings
    - Official Gazette notice, **1545 OG 217**, April 28, 2026.
- Best Practices for Submission of Rule 132 Subject Matter Eligibility Declarations (SMEDs)
    - **Memorandum**, April 30, 2026.

- Requirement for Foreign Applicants to use Patent Practitioner
  - **Memorandum to the Examining Corps**, July 17, 2026 (with **Implementation Examples** attached).